

Court No. - 29

Case :- WRIT - C No. - 39343 of 2024

Petitioner :- Shambhu Singh

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Abhishek Mishra,Ram Bali Ram

Counsel for Respondent :- C.S.C.,Udit Chandra

Hon'ble Vivek Kumar Birla,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

1. Heard Sri Ram Bali Ram, learned counsel for the petitioner, Sri Ambrish Shukla, learned Additional Chief Standing Counsel appearing for the State-respondent no.1 and Sri Udit Chandra, learned counsel for respondent nos.2 to 4-Corporation.

2. The instant petition has been filed praying for quashing of the impugned provisional notice dated 28.8.2024 sent by respondent no.4 for depositing total of Rs.10,56,306.00 through registered post to the petitioner and further directing the petitioner to produce all evidence within 15 days from the receipt of notice and appear on 16.9.2024 at about from 11:00 till 02:00 hours in his office.

3. At the very outset, learned counsel for the respondents-Corporation has raised a preliminary objection that against the impugned provisional notice dated 28.8.2024 issued by respondent no.4, the petitioner has effective alternative statutory remedy under Clause 6.8 of the UP Electricity Supply Code 2005. Learned counsel for the petitioner could not dispute the same.

4. In such view of the matter, present petition would not be maintainable. However, the same stands disposed of, with liberty to the petitioner to avail the statutory remedy, if so advised.

Order Date :- 27.11.2024

RKK/-